

26STCV02635 26STCV02635

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-08-11

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Case Number: 26STCV02635 Hearing Date: August 11, 2026 Dept: 617

Dept.

617

Date:

8-11-26

Case

#: 26STCV02635

Trial

Date: None Set

TRANSFER/CHANGE VENUE

MOVING

PARTY: Defendants, Finfare Financial Inc., Finfare Financial Delaware Inc., Wayne Lin, and Finfare Money Inc.

RESPONDING

PARTY: Plaintiff, Charles Shaw

RELIEF

REQUESTED

Motion

to Change Venue/Transfer the Action to Orange County Superior Court

SUMMARY

OF ACTION

In

September 2025, Plaintiff Charles Shaw was recruited by Defendants Finfare Financial Inc. and Finfare Financial Delaware Inc. (collectively, "Finfare") for a senior executive position of "Director of Engineering, AI" for an internal Finfare initiative branded "Snowpeak AI." Multiple interviews were conducted via Zoom and Finfare CEO Defendant Wayne Lin offered Plaintiff the position. Plaintiff relocated from his Sherman Oaks residence to work full-time for Finfare in Irvine. However, within a month of his employment, Finfare eliminated Snowpeak AI and terminated Plaintiff. Following an acquisition, Finfare's operations were consolidated with another company, Adro, and rebranded and operated as Defendant Finfare Money Inc.

Plaintiff

alleges that at the time the offer letter was issued, Lin and Finfare were actively engaged in advanced acquisition planning involving Adro that contemplated discontinuing Snowpeak AI and the executive position but failed to disclose this to Plaintiff. On January 26, 2026, Plaintiff filed a complaint against Defendants for: (1) Fraudulent Inducement to Relocate; (2) Fraud; and (3) Negligent Misrepresentation.

RULING: Granted.

Defendants move to transfer the action

to Orange County Superior Court. They argue that venue is improper in Los Angeles County because their liability did not arise there. Instead, their liability arose in Orange County because that is where the alleged misrepresentations occurred and Plaintiff's employment was to be performed. Plaintiff opposes the motion, arguing that the liability arose in Los Angeles County because that is where he received, relied, and acted upon the alleged misrepresentations. Defendants' motion is granted because here Lin has the right to change venue to the county of his residence in Orange County.[1]

"Except as otherwise provided in Section 396a, if an action or proceeding is commenced in a court having jurisdiction of the subject matter thereof, other than the court designated as the proper court for the trial thereof, under this title, the action may, notwithstanding, be tried in the court where commenced, unless the defendant, at the time he or she answers, demurs, or moves to strike, or, at his or her option, without answering,

demurring, or moving to strike and within the time otherwise allowed to respond to the complaint, files with the clerk, a notice of motion for an order transferring the action or proceeding to the proper court, together with proof of service, upon the adverse party, of a copy of those papers. Upon the hearing of the motion the court shall, if it appears that the action or proceeding was not commenced in the proper court, order the action or proceeding transferred to the proper court." (Code Civ. Proc., § 396b, subd. (a).)

"Except as otherwise provided by law and subject to the power of the court to transfer actions or proceedings as provided in this title, the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action. If the action is for injury to person or personal property or for death from wrongful act or negligence, the superior court in either the county where the injury occurs or the injury causing death occurs or the county where the defendants, or some of them reside at the commencement of the action, is a proper court for the trial of the action." (Code Civ. Proc., § 395, subd. (a).)

"A corporation or association may be sued in the county where the contract is made or is to be performed, or where the obligation or liability arises, or the breach occurs; or in the county where the principal place of business of such corporation is situated, subject to the power of the court to change the place of trial as in other cases." (Code Civ. Proc., § 395.5.)

Venue is proper in Orange County. "[W]hen a plaintiff brings an action against several defendants, both individual and corporate, in a county in which none of the defendants reside, an individual defendant has the right to change venue to the county of his or her residence. This is true even though the action was initially brought in a county where the corporate defendants may be sued under Code of Civil Procedure section 395.5." (Brown v. Superior Court (1984) 37 Cal.3d 477, 482, fn. 6.) Here, none of the defendants reside in Los Angeles County: Finfare has its principal place of business in Irvine, Lin resides in Irvine, and Finfare Money has its principal place of business in Dover, Delaware. [Compl. ¶¶ 2-3, 5-6.] Thus, even if venue is proper as to corporate defendants Finfare and Finfare Money under section 395.5, Lin has the right to change venue to his county of residence in Orange County. Defendants' motion is therefore granted.

The

action is ordered transferred to Orange County Superior Court. All scheduled items on calendar are vacated.

Defendants to give notice.

[1] The Court acknowledges that Defendants raised Lin's right to transfer for the first time in reply. Generally, new arguments in reply are not permitted. (*Maleti v. Wickers* (2022) 82 Cal.App.5th 181, 227-28.) However, the Court finds no prejudice to Plaintiff in considering this basis for transfer given its clear application here and Lin's entitlement "to have an action tried in the county of his [] residence unless the action falls within some exception to the general venue rule." (*Brown v. Superior Court* (1984) 37 Cal.3d 477, 483.)